

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 19, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

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SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	26PR202816	In the Matter of M.P.	Motion to Seal Pleadings Scroll down to Line 1 for Tentative Ruling.

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9:00 A.M.

Calendar Line # 1

Case Name In the Matter of M.P.

Case No. 26PR202816

Motion to Seal Pleadings

I. BACKGROUND

Petitioners are nineteen minors, the estates of two individuals, and one adult plaintiff who were allegedly harmed by Defendants Character Technologies, Inc. (“CTI”), Google LLC, Noam Shazeer, and Daniel De Freitas Adiwardana. Petitioners allege that children suffered catastrophic psychological injuries through their use of the CTI’s chatbot, including suicide, attempted suicide, self-harm, sexualized role play, violence, traumatic emotional injury, and other severe psychiatric harm. The parties have reached a settlement agreement in the form of a one-time payment to be deposited, upon approval, into a Qualified Settlement Fund within the meaning of Treasury Regulation 26 C.F.R. § 1.468B-1. Petitioners filed an ex parte petition for approval of the settlement agreement in the instant minor’s compromise case. The Honorable Amber Rosen has signed the order granting the ex parte petition approving the settlement agreement.

On July 27, 2026, Petitioners filed this present motion to seal pleadings related to ex parte petition for approval of global settlement agreement. The motion was not accompanied by a proof of service.

The motion is unopposed. Per California Code of Civil Procedure section 1005(b) opposition papers were due on August 6, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the nonresponding party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

II. PROCEDURAL REQUIREMENTS

A. PROOF OF SERVICE

As an initial matter, the Court notes that Petitioners have not filed a proof of service of the moving papers. Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing. (California Rules of Court, rule, 3.1300(c)). However, the petitioners assert that the defendants waived notice of the hearing on the motion to seal, addressed below.

B. PETITIONER’S REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Petitioners request judicial notice of the First Supplement to the Ex Parte Petition for Approval of Global Settlement Agreement pursuant to Probate Code sections 3500, 3600; Code of Civil Procedure sections 372 and 187, submitted on July 2, 2026 to establish that Defendants, Estate Plaintiffs, and Adult Plaintiffs waived notice of the hearing on the motion to seal.

The Court finds a procedural violation under Rules of Court, rule 3.1306(c), which provides, “A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material.” The Petitioners failed to provide a copy of the document attached to the request. The Court exercises its discretion and will consider the unopposed request for judicial notice and admonishes the Petitioners to comply with Rules of Court.

The Petitioners request for judicial notice of the First Supplement to the Ex Parte Petition for Approval of Global Settlement Agreement is GRANTED. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

C. THE MATERIAL REQUESTED TO BE SEALED IS UNCLEAR

Here, it is unclear what materials the Petitioners seek to seal. In the notice of motion, Petitioners' states they "will move the Court for an Order to seal portions of their Ex Parte Petition For Approval of Global Settlement Agreement¹ and any declarations and other supporting pleadings that may be filed in connection therewith ('Ex Parte Petition'), all of which are and will be filed conditionally under seal concurrently with the filing of this Motion to Seal." (Motion, p. 2:4-7). The conclusion similarly states, "Petitioners respectfully request that the Court issue an Order allowing the redacted portions of the Petitioners' Pleadings to be filed under seal. Petitioners' Pleadings disclose and relate to the minors and other plaintiffs' highly sensitive personal and medical information. Thus, filing the redacted portions of Petitioners' Pleadings under seal is appropriate here." (Motion, p. 20:9-12).

However, in the body of the memorandum of points and authorities, Petitioner's state, "Probate Code § 3500, et seq. vests this Court with a parents patriae duty to safeguard the interests of minors whose claims are being compromised. The Court cannot meaningfully discharge that duty *without examining the full medical, psychological, and treatment records* that bear on the value and fairness of each minor's settlement. Without an order sealing the Confidential Information, the plaintiffs will be chilled from providing the *candid medical and mental-health disclosures that the Court needs to evaluate the fairness of the compromise*, thereby undermining the very protective function the statute is designed to serve. (Motion, p. 8:5-11, italics added). No medical records are attached to the ex parte petition or any of the documents filed concurrently therewith, potentially suggesting that Petitioners are seeking to file future documents under seal without a further order of the court. Petitioner then states, "The recurring nature of the proceedings to follow further demonstrates that the proposed sealing is the least restrictive available means. The settlement will be deposited into a Qualified Settlement Fund and, in turn, will fund individual special needs trusts and minors' compromise vehicles for the benefit of the Petitioner-children. Each of those vehicles will require periodic court-supervised accountings, bond calculations, and related petitions, every one of which will necessarily disclose, or risk disclosing, the same Confidential Information sought to be sealed here. *Requiring Petitioners to file a separate sealing motion in connection with each future filing would generate substantial, recurring administrative cost, cost that would be borne by the very minors the settlement is designed to compensate, and would create the constant risk of inadvertent public disclosure between filings.*" (Motion, pp. 18:26-19:9).

Yet, the proposed order appears to refer to only the documents that have already been filed in redacted form. Petitioners must specify the exact document(s) that they seek to seal and provide redacted forms.

III. LEGAL STANDARD

A. SEALING UNDER RULES OF COURT, RULE 2.550 and 2.551

To grant a motion to seal, the Court must expressly find the following factors set forth under California Rule of Court, rule 2.550(d):

- (1) An overriding interest exists that overcomes the public right of access;

¹ In the Ex Parte Petition for Approval of Global Settlement, the Petitioners state, "The Agreement requires that *all filings in this proceeding, as well as the proceeding itself*, be under seal. Accordingly, Petitioners are filing concurrently herewith a Motion to Seal Records and Proceedings pursuant to California Rules of Court, Rules 2.550-2.551, as further described in Section VIII below. Petitioners respectfully request that the Court address the sealing motion at or before consideration of this Petition so that the confidentiality protections required by the Agreement are preserved throughout these proceedings." (Ex Parte Petition, p. 4:19-24).

- (2) The overriding interest supports sealing;
- (3) There is a substantial probability that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to protect the overriding interest. (Cal. Rules of Court, rule 2.550(d)(1)-(4), (e); *McGuan v. Endovascular Techs., Inc.* (2010) 182 Cal.App.4th 974, 988).

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, rule 2.550(c)). However, “[t]he rules [Cal. Rules of Court, rule 2.550 and 2.551] ‘recognize the First Amendment right of access to documents used at trial or as a basis of adjudication.’ [Citation.]” (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 84 (*Mercury Interactive*)). “Rule 2.550(a)(2) provides that the ‘rules do not apply to records that are required to be kept confidential by law.’ The sealed records rules are also inapplicable to ‘discovery motions and records filed or lodged in connection with discovery motions or proceedings.’ (Rule 2.550(a)(3)). But the rules ‘do apply to discovery materials that are used at trial or submitted as a basis for adjudication of matters other than discovery motions or proceedings.’ (*Ibid.*)” (*Id.* at p. 85). The constitutional policy favoring disclosure must be balanced against privacy rights and other factors. (*People v. Jackson* (2005) 128 Cal.App.4th 1009, 1026-1027).

“Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*In re Providian*)). In addition, confidential matters relating to the business operations of a party may be sealed where public revelation of the information would interfere with the party’s ability to effectively compete in the marketplace. (*Universal City Studios, Inc. v. Superior Court (Unity Pictures Corp.)* (2003) 110 Cal.App.4th 1273, 1285-1286).

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party’s overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (d)(5)). In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*In re Providian, supra*, 96 Cal.App.4th at p. 309). “A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a)).

The Court has discretion in making factual determinations on a motion to seal. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285).

B. PROBATE CODE SECTION 3500

Code of Civil Procedure section 124 provides that “[e]xcept as provided in Section 214 of the Family Code or any other law, the sittings of every court shall be public.” In *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, the California Supreme Court discussed the First Amendment underpinnings of the public right of access to civil proceedings:

We conclude, in light of the high court case law and its progeny, that, in general, the First Amendment provides a right of access to ordinary civil trials and proceedings, that constitutional standards governing closure of trial proceedings apply in the civil setting, and that section 124 must, accordingly, be interpreted in a manner compatible with those standards.

(*NBC Subsidiary*, 20 Cal.4th at 1212). Unlike juvenile proceedings, probate proceedings are presumptively public. (Code Civ. Proc., § 124).

Both juvenile delinquency and dependency proceedings are presumptively closed to the public. (Welf. & Inst. Code, § 346 [“Unless requested by a parent or guardian and consented to or requested by the minor concerning whom the petition has been filed, the public shall not be admitted to a juvenile court hearing. The judge or referee may nevertheless admit such persons as he deems to have a direct and legitimate interest in the particular case or the work of the court.”]; Welf. & Inst. Code, § 676, subd. (a) [Unless requested by the minor concerning whom the petition has been filed and any parent or guardian present, the public shall not be admitted to a juvenile court hearing.”]).

IV. ANALYSIS

A. SEALING

Petitioners aver that the redacted information contained in the redacted pleadings relates to or reveals sensitive personal mental health and medical information, communications arising from or related to conversations with doctors, psychotherapists, and mental health professionals, all of which the Petitioners contend is privileged and confidential by law, and which, if revealed to the public, would be to the minors and other plaintiffs’ life-long detriment. Petitioners present two arguments regarding this position: First, that the information at issue is confidential and, therefore Rules of Court, rule 2.550 is inapplicable. Petitioners argue that the medical information they seek to protect does not fall under Rules of Court, rule 2.551 because it is confidential by law under HIPAA and the psychotherapist privilege. Rules of Court, rule 2.550(a)(2) provides, “These rules do not apply to records that are required to be kept confidential by law.”

However, the Court notes that the vast majority of the redacted material does not contain any medical information. Instead, much of it refers to the terms of the settlement agreement, the identity of the defendants, and other similar information. For example, Petitioners seek to redact the names of the defendants, multiple portions of the documents referring to the terms of the settlement, and the entirety of the text of the settlement agreement itself. It appears that the remainder of the proposed redactions are suggested because the settlement itself is confidential. A “contractual obligation not to disclose can constitute an overriding interest within the meaning of” rule 2.550. (*Universal City Studios, supra*, 110 Cal.App.4th at p. 1283 [discussing predecessor to rule 2.551]). For the purposes of the overriding interest requirement, the party moving to seal must not only identify an overriding interest but also establish a substantial probability that the interest will be prejudiced absent sealing. (*Ibid*). To the extent Petitioners seek to seal portions of the documents due to the confidentiality of the settlement, they have failed to provide any argument or authority in support. (*People v. Dougherty* (1982) 138 Cal.App.3d 278, 282 [a point asserted without argument or authority in support is without foundation and requires no discussion]).

The only documents for which a redacted version has been submitted are the ex parte petition and a supplemental information document filed therewith.² The supplemental information document contains no medical information whatsoever.³ Thus, there is no basis to conclude that any type of medical information confidentiality brings the supplemental information document outside the reach of rule 2.550.

In the alternative, that the material at issue should be sealed because their interest in protecting their medical information outweighs any public right of access.

As to the ex parte petition itself, it does contain some amount of medical information. Paragraph 2 of the ex parte petition states, “Petitioners allege that children suffered catastrophic psychological injuries through their use of the CTI’s chatbot, including suicide, attempted suicide, self-harm, sexualized role play, violence, traumatic emotional

² Petitioners appear to have filed the ex parte petition in its redacted and unredacted forms twice.

³ It does contain the names of the non-minor plaintiffs, which Petitioners do seek to redact.

injury, and other severe psychiatric harm.” Petitioners allege Paragraph 35 of the ex parte petition states, “As indicated above, this case involves children that committed suicide or otherwise suffered catastrophic psychological injuries through their use of CTI’s chatbot, including attempted suicide, self-harm, sexualized role play, violence, traumatic emotional injury, and other severe psychiatric harm.” Portions of the settlement agreement itself, which is attached as Exhibit A to the ex parte petition does contain what might be considered medical information, such as the fact that Plaintiffs have determined that there is no need for a Medicare set off payment. (Ex Parte Petition, Ex A, p. 10-11).

Petitioners provide no reasoned argument as to how the general information above could constitute confidential communications made with a psychotherapist or HIPAA protected information. (See Evid. Code, § 1014 [“the patient, whether or not a party, has a privilege to refuse to disclose, and to prevent another from disclosing, *a confidential communication between patient and psychotherapist*”], italics added; 42 U.S.C. § 1320d-6 [“A person who knowingly and in violation of this part [42 USCS §§ 1320d et seq.]—(1) uses or causes to be used a *unique health identifier*; (2) obtains *individually identifiable health information relating to an individual*; or (3) discloses *individually identifiable health information* to another person, shall be punished as provided in subsection (b).”], italics added).⁴

Petitioners argue that “[p]seudonymous filing alone cannot prevent that harm where the substance of the diagnoses, treatment, and prognosis remains in the public file.” (Motion, p. 18:7-8). Petitioners aver that “Petitioners have redacted only the minimum information necessary to protect personal information regarding Petitioners, including medical information, thus accommodating the public’s interest in access to these records.” (*Id.* at p. 18:23-25). The Court notes that Petitioners have not moved to file using pseudonyms and the remainder of the information sought to be protected is either too general to support sealing or related to the settlement agreement, which although it states it is confidential. Petitioners have failed to make any argument to support sealing on any ground other than medical privacy.

Although it does not appear that Petitioners sought permission to file their documents with their names in initial form, it does appear that the names of the minors should be protected. “[B]efore authorizing a civil litigant to use a pseudonym, the trial court must apply the ‘overriding interest test’ outlined in *NBC Subsidiary*^[5] and California Rules of Court, rule 2.550(d). [Citation.] . . . ‘[I]n deciding the issue the court must bear in mind the critical importance of the public’s right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur ‘only in the rarest of circumstances.’” (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 238). “Courts in California have recognized at least two interests relevant here as potentially sufficient to allow for redaction of names. These are: first, maintaining privacy of highly sensitive and potentially embarrassing personal information (*In re M.T.* (2024) 106 Cal.App.5th 322, 336-341 [] [records revealing gender identity change]; [*Oiye v. Fox* (2012) 211 Cal.App.4th 1036,] 1068 [medical and psychological records]); and second, protecting against the risk of retaliatory harm [citation].” (*Roe v. Smith, supra*, 116 Cal.App.5th at p. 239). Here, the minors allege that they have suffered physical and psychological harm as discussed above and that their medical records will likely need to be included in future filings. Further, although this is not a consideration mentioned in the motion, they stand to receive significant funds under the terms of the settlement. (*Globe Newspaper Co. v. Superior Court* (1982) 457 U.S. 596, 607 [The interest in “safeguarding the physical and psychological well-being of a minor . . . is a compelling one.”], fn. omitted).

However, the Court finds that sealing the names of the minor plaintiffs is warranted. Notably, the names of the minors appear on the signature pages for the settlement agreement and on Exhibit 1 to the settlement agreement, which contains the full names of both the minors and their guardians.

⁴ The United States Code section identified herein is the only portion of HIPAA Petitioners cite.

⁵ *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178.

It is less clear that the identities of the adult plaintiffs should be protected. The motion mentions that some of the adults listed on Exhibit 1 are parents or guardians of the minors. The identity of these individuals could lead to discovery of the identities of the minors. Some of the adult plaintiffs are also parents or guardians of deceased children and it is not clear that the right to privacy of those deceased children would justify sealing. (See, e.g., *Hendrickson v. California Newspapers, Inc.* (1975) 48 Cal.App.3d 59, 62 [right to privacy does not survive death]; see also *Catsouras v. Department of California Highway Patrol* (2010) 181 Cal.App.4th 856, 870 [same]). It also appears that some of the adult plaintiffs are plaintiffs in their own right. But, as discussed further below, the medical information stated in the ex parte petition and the supplemental information document is extremely general and not linked to any specific plaintiff in any identifiable way. There is some slight mention of medical information in the ex parte petition. Paragraph 2 of the ex parte petition states, “Petitioners allege that children suffered catastrophic psychological injuries through their use of the CTI’s chatbot, including suicide, attempted suicide, self-harm, sexualized role play, violence, traumatic emotional injury, and other severe psychiatric harm.” Petitioners allege Paragraph 35 of the ex parte petition states, “As indicated above, this case involves children that committed suicide or otherwise suffered catastrophic psychological injuries through their use of CTI’s chatbot, including attempted suicide, self-harm, sexualized role play, violence, traumatic emotional injury, and other severe psychiatric harm.” Portions of the settlement agreement itself, which is attached as Exhibit A to the ex parte petition does contain what might be considered medical information, such as the fact that Plaintiffs have determined that there is no need for a Medicare set off payment. (Ex Parte Petition, Ex A, p. 10-11). The court finds that the information is general and does not appear to be sufficiently private to justify redaction, especially if the minors’ names are redacted.

B. PROBATE CODE SECTION 3500

Here, the Petitioners aver that the entire proceeding should be confidential and that the constitutional right of public access to court proceedings does not apply in this case because it is a statutory proceeding involving minors. The authorities Petitioners rely on do not support the proposition that there is some sort of general rule that the constitutional right of access to court proceedings does not apply to statutory proceedings involving minors. The various examples cited indicating that statutory proceedings may not be public are referring to proceedings such as juvenile delinquency and dependency proceedings and Lanterman Petris Short proceedings,⁶ which are statutorily presumptively closed to the public.

The Court finds that no portion of the Probate Code, including Probate Code section 3500, which governs the instant minor’s compromise proceedings, makes the proceedings confidential.

V. CONCLUSION

Based on the foregoing, the unopposed motion is denied and granted in part. The request to seal all documents filed in this case is DENIED WITHOUT PREJUDICE.

The Court GRANTS redaction and sealing of the minors and non-minor plaintiffs to protect the privacy of the minors. The Court DENIES redaction of the initials of the petitioners in the caption.

The Court will prepare the formal Order.

⁶ LPS Act proceedings are presumptively closed under Welfare and Institutions Code section 5118, subdivision (c)(1).